

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 11, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. at the Cheyenne Civic Center and via electronic conference meeting. Attending electronic conference meeting were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also attending: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Cook, and pursuant to support received by Mr. Johnson and Mr. Roybal, agenda item #23(a) was removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on December 28, 2020. Motion (per Consent Agenda) carried.

[CA] Minutes from the Sine Die Session of the Governing Body on January 4, 2021. Motion (per Consent Agenda) carried.

[CA] Minutes from First Regular Meeting of the Governing Body on January 4, 2021. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for land located southeast of the intersection of High Plains Road and South Greeley Highway. Charles Bloom, Director of Planning and Development, explained they had received a petition to annex the land, provided information on the property and reviewed requirements of and compliance with annexation conditions contained in state statutes. Comment was made related to taking precautions to avoid any potential for future flooding in the area of land to be annexed. Upon inquiry, Mr. Bloom provided information on public safety services that would be utilized for the annexation area. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the hearing.

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located southeast of the intersection of Powderhouse Road and East Carlson Street. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by

Mr. White. Concern was expressed related to traffic in the area of Carlson and Powderhouse and along the east side access to Converse Ave. Motion carried. Voting “yes” – all members of the governing body. (#4337)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-1 Agricultural and Rural Residential to P Public District for a tract of land generally located southeast of the intersection of Powderhouse Road and East Carlson Street. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. (#4338)

ORDINANCE – 3rd READING – Amending the Unified Development Code (UDC) to define, establish permissibility, and create specific use standards for the use ‘Mini Storage’. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. (#4339)

ORDINANCE – 3rd READING – Amending Section 2.04.020, Mayor-Election-Term of Office, of Chapter 2.04, Mayor and City Council, of Title 2, Administration and Personnel, of the Municipal Code of the city of Cheyenne, Wyoming. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. (#4340)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located east of and adjacent to South Greeley Highway between High Plains Road and Terry Ranch Road – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-1 Agricultural and Rural Residential to AG Agricultural and HI Heavy Industrial for land located east of and adjacent to South Greeley Highway between High Plains Road and Terry Ranch Road – referred to Public Services Committee. (Sponsor – Dr. Rinne)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from LI (Light Industrial) to MR (Medium-Density Residential) for property generally located northeast of the intersection of Pebrican Avenue and East 2nd Street – referred to Public Services Committee. (Sponsor Dr. Rinne)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne, changing the zoning classification from MR (Medium-Density Residential) to CB (Community Business) for property generally located northeast of the intersection of Carbon Avenue and East 13th Street – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a final plat for Coyote Ridge, a plat of a portion of the northwest quarter of Section 20, Cheyenne, Laramie County,

Wyoming (located at the southeast corner of Powderhouse Road and East Carlson Street). Motion (per Consent Agenda) carried. (#6117)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a final plat for Bison Business Park, a plat of portions of Sections 28, 29, and 32, Township 13 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located east of and adjacent to South Greeley Highway between High Plains Road and Terry Ranch Road) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a final plat for Sweetgrass, 5th Filing, a subdivision of a portion of the N½ of Section 16, Township 13 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located south of East College Drive and adjacent to Sweetgrass Drive -- referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Adopting an amendment to the Future Land Use Map in PlanCheyenne, amending the land use category for property generally located east of South Greeley Highway at Terry Ranch Road from Agricultural and Mixed-Use Employment to Industrial and amending the Urban Service Boundary and Natural and Cultural Resources Area -- referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] Preliminary Plat for Campstool Addition, 5th Filing, generally located north of Venture Drive/Interstate 80 Service Road east of Industry Drive – referred to Public Services Committee.

[CA] Letter of Agreement between the City of Cheyenne, Police Department, and the United States Department of Justice, Drug Enforcement Administration, for locating and eradicating illicit cannabis, and investigating and prosecuting those cases – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization, and West Edge Collective LLC, for FY 2021 MPO Public Engagement and Web Support Services (MPO Federal funds) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and GLM Design Group for the submission of two Building Resilient Infrastructure and Communities (BRIC) Capability- and Capacity- Building Funding grant applications to FEMA for the City of Cheyenne (2019-2022 1% Sales Tax) – referred to Finance Committee.

Contract Modification #2 to Contract #6927 between Wyoming Homeland Security and the City of Cheyenne extending the term of the grant through August 31, 2021 (DHS Grant Code: EMW-2018-SS-00065). Byron Mathews, Cheyenne Fire and Rescue Division Chief, provided information on the modification stating it can't be submitted due to the original grant application not being filed timely. Mr. Mathews advised staff requests denial of the proposed Contract Modification and that staff will resubmit to meet grant funding compliance requirements. Upon inquiry, Mr. Mathews advised the remaining grant fund balance is \$5,000.00. Upon inquiry, City Clerk Kris Jones, explained that as the agenda item received a recommendation for approval from

the Finance Committee, the Chair should advise the Governing Body of that motion. Ms. Jones further advised that the motion to approve could either die by lack of a second or be voted down as recommended by staff. Mr. Roybal moved to approve, seconded by Mr. Johnson. Motion failed with all members of the governing body voting “no” with the exception of Mr. Segrave voting “yes”.

[CA] Contract Modification #1 to Contract #7206 between the City of Cheyenne and Inman Roofing, Inc., to replace wood nailer on Cheyenne Aquatic Center roof (General Fund-CIP Account) – referred to Finance Committee.

[CA] Consideration of Bid #S-9-21 for a contract between the City of Cheyenne and 4 Quarters Excavation & Development for the East Cheyenne Community Park-Parking Lot and Trailhead Construction Project (Specific Purpose Sales Tax) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Announcement was made that due to the Martin Luther King Jr. Day Holiday on Monday, January 18, 2021, Finance Committee will meet at Noon on Tuesday, January 19, 2021 via electronic conference meeting and Public Services Committee will meet at Noon on Wednesday, January 20, 2021 via electronic conference meeting.

Under other business:

Mr. Johnson requested information related to the abandoned vehicle program in terms of which officer he should work with and obtaining the vehicle auction schedule. He also advised he had received complaints related to traffic enforcement in the downtown area, specifically CSO vehicles backing up traffic when tending to parking violations. Acting Police Chief Nathan Buseck provided information on the county run tow lot noting the number of vehicles can be fluid as the county also utilizes the lot and advised the auction schedule will be provided. He explained there is a group email list for CSO’s that should be utilized. Acting Chief Buseck advised he will meet with the Parking Manager about the downtown traffic enforcement concerns.

Mr. Johnson commented on a concern he had received from a constituent related to trash removal and street sweeping services occurring on the same day and requested an update on the Taft & Continental school zone traffic study that was done a few years ago. Vicki Nemecek, Director of Public Works, explained street sweeping doesn’t typically occur on trash days, but if a request or work order is received, both services may occur. Ms. Nemecek advised she would discuss the school zone traffic study with the Engineering Department.

Mr. Johnson commented on city staff procedures related to COVID-19 cases. Mayor Collins advised he has been in contact with the Laramie County Environmental Health Department and department directors and information will be forthcoming.

Dr. Aldrich advised Ward 3 council members are hosting a “Coffee with Council” event at Dazbog Coffee on Pershing on January 16, 2021.

Mr. Laybourn complemented everyone who has been involved with moving council meetings to the Civic Center. He further expressed appreciation to former Police Chief Brian Kozak and former Fire Chief Greg Hoggatt, recognizing them for their outstanding service to the city.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:33 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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